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LLB 2 - 1st Semester

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CONSTITUTIONAL LAW I

MODULE: CITIZENSHIP

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1.0 INTRODUCTION

Citizenship is very important to a person as it determines the level of his rights and entitlements from his State as well as his allegiance to the said State. In other words, a citizen and a non-citizen could be living at the same place and working in the same institution, but are totally subject to different fate under the laws of the State in question. Another term similar to citizenship is indigeneship. While citizenship refers to a relationship with a nationstate, indigeneship is rather narrowed to a given community, locality or area within the said nationstate. In this study, we shall highlight the differences between the two concepts.

Note that consideration of citizenship could be traced back to the aftermath of the biblical story of the building of the tower of babel which failed as a result of the builders developing different tongues and languages which eventually resulted in their separation. It was from these moulds of separation that the idea of citizenship evolved. Citizenship is strictly regulated by law and cannot easily be taken away by the State from a person without his consent or without him running foul of the provisions of the law. This was why the Nigerian court in the case of *SHUGABA DARMAN v. MINISTER OF INTERNAL AFFAIRS* (1983) 3 NCLR 1 held that the State cannot deprive a Nigerian citizen of his citizenship without any just cause and that the deportation of the Applicant who is a Nigerian citizen is unconstitutional, unlawful and void.

We shall examine the meaning of citizenship and its place under the 1999 Constitution of the Federal Republic of Nigeria. Specifically, we shall examine the means of acquiring citizenship under Nigerian law. We shall also point out the ways citizenship could be terminated.

2.0 OBJECTIVES

By the end of this unit, you should be able to explain:

the meaning of citizenship; the ways of acquiring citizenship and the means the same could be terminated. You will also know the related concept of indigeneship and the conflict between citizenship and indigeneship in Nigeria and the way forward.

3.0 MAIN CONTENT

3.1 Meaning of Citizenship

Citizenship generally refers to the status of a person which determines his rights and privileges as well as his duties and obligations to a given nation. It is against this backdrop that the Black's Law Dictionary defines a citizen as a person who under the constitution and laws of a particular State is a member of the particular community, owing allegiance and being entitled to the enjoyment of some fundamental rights. According to the Oxford Advanced Learners' Dictionary, a citizen is a person who has the legal right to belong to a particular country. The legal implication of the above definitions is that citizenship creates a sense of national identity by virtue of membership of a political community or nation. In the same vein, citizenship status is also meant to inspire allegiance of the citizen to the nation as well as guarantee the protection and enjoyment of the civil rights of the citizen.

It was perhaps with the above in mind that the United States court in the case of *HERRIOT v. CITY OF SEATTLE* 81 Wash 2d 48 101, 109 defines citizens as 'members of a political community who in their associated capacity, have established or submitted themselves to the dominion of a government for the promotion of their general welfare and protection of their individual as well as collective rights'.

From all the above, one can see a citizen as the recipient of some basic rights provided in the Constitution and laws of a nation, in return for which certain minimum level of allegiance is expected from him towards the State of which he is a member. It was held in the case of *AGBAKOBA v. STATE SECURITY*

SERVICES (1994) 6 NWLR (Pt. 351) 475 that a major hallmark of citizenship is the right to move around, reside anywhere, travel out and return back freely to one's nation. Note that the idea of citizen is fast changing in modern times as regional and economic platforms are increasing extending citizen's rights beyond national boundaries as could be seen with the European Union.

Note: Note that citizenship generally refers to natural persons in terms of human beings and does not include artificial entities like companies or industries.

3.2 Types and Ways of acquiring Citizenship

Although the 1999 Constitution of the Federal Republic of Nigeria (as amended) does not define citizen or citizenship, it however boldly provides for the different means of acquiring citizen. See Sections 25-28 thereof. From the aforesaid provisions, the following types of citizenship are recognized in Nigeria, namely:-

- (i) Citizenship by birth
- (ii) Citizenship by registration
- (iii) Citizenship by naturalization
- (iv) Dual citizenship

CITIZENSHIP BY BIRTH

This type of citizenship is provided for by Section 25 of the 1999 Constitution. According to the section:- "The following persons are citizens of Nigeria by birth namely,

- (a) Every person born in Nigeria before the date of independence, either of whose parents or any of whose grand parents belongs or belonged to a community indigenous to Nigeria, provided that a person shall not become a citizen by virtue of this section if neither of his parents nor any of his grand parents was born in Nigeria.
- (b) Every person born in Nigeria after the date of independence either of whose parents or any of whose grand parents is a citizen of Nigeria; and
- (c) Every person born outside Nigeria either whose parents are citizens of Nigeria ✓

→ It should be noted that citizenship under this head is based on indigeneship or nativity. In other words, it confers the status on a person based on your parents or grand parents. It should also be noted that unlike under most indigenous cultures where succession and inheritance are patrilineal, it was held in the SHUGABA case (supra) that under Section 25 of the Constitution, a person can acquire citizenship either through the father or the mother. In that case, SHUGABA acquired his citizenship through his mother who was a Kanuri woman.

It is also noteworthy that Section 25 also accommodates our different community settlements prior to our independence as a nation by allowing us citizenship through our

grand parents. It must be emphasized that such grand parents must mandatorily be born in Nigeria.

We wish to emphasize that citizenship by birth is the highest status of citizenship. This is why:-

- (a) It is only a citizen by birth that is eligible to contest Constitution for the president in Nigeria.
- (b) No one can under any circumstance deprive a citizen by birth of his citizenship. See SHUGABA DARMAN v. MINISTER OF INTERNAL AFFAIRS (supra).
- (c) Citizenship by birth can only be waived or renounced by the citizen himself. See Section 29 of the Constitution.

② CITIZENSHIP BY REGISTRATION

This is the second method of acquiring in Nigeria. It is provided for in Section 26 of the Constitution. According to the section, the following two classes of persons can become citizens of by registration:-

- (a) Any woman who is married to a citizen of Nigeria;
- (b) Every person of full age and capacity born outside Nigeria any of whose grandparents is a citizen of Nigeria.

To be qualified for citizenship by registration, an applicant must satisfy the following conditions:-

- (1) He is of good character. ✓
- (2) He has shown a clear intention of his desire to be domiciled in Nigeria. ✓
- (3) He has taken or subscribed to the oath of allegiance set out in the Constitution. ✓

Note that the section only covers "non-Nigerian women married to Nigerian men" and does not include non-Nigerian men married to Nigerian women. Their only option of becoming citizens will be through naturalization. It has been argued that the reason for this omission is because our law is nationally "patrilineal and not matrilineal". This argument is doubtful in view of the position under section 25 which allows for both patrilineal and matrilineal descent. Note also that section 32(1) of the Constitution empowers the President to make regulations prescribing matters for granting special immigrant status with full residential rights to non-Nigerian spouses of citizens of Nigeria who do not wish to acquire Nigerian citizenship.

Under this section, it would appear a woman who is no longer married to a Nigerian citizen either by reason of death or divorce, but wishes to become a Nigerian citizen can still register.

Note that full age under Nigerian constitution simply means 18 years. See Section 77(2) of the Constitution.

By Section 307 of the Constitution, a citizen by registration cannot within ten years of his registration take up any elective or appointive position in Nigeria.

③ CITIZENSHIP BY NATURALIZATION

This is provided for in Section 27 of the Constitution. This status may be granted to any person who satisfies the following:-

- (a) He is a person of full age and capacity. ✓
- (b) He is a person of good ~~has shown a~~ character. ✓
- (c) He has shown a clear intention of his desire to be domiciled in Nigeria. ✓
- (d) He is, in the opinion of the Governor of the State where he is or proposes to be resident, acceptable to the local community in which he is to live permanently and has been assimilated into the way of life of Nigerians in that part of the Federation. ✓
- (e) He is a person who has made or is capable of making useful contribution to the advancement, progress and wellbeing of Nigeria. ✓
- (f) He has taken the oath of allegiance under the Constitution. ✓
- (g) He has immediate preceding the date of his application, either
 - i) Resided in Nigeria for a continuous period of fifteen years, or; ✓
 - ii) Resided in Nigeria continuously for a period of twelve months, and during the period of twenty years immediately preceding that period of twelve months has resided in Nigeria for periods amounting in the aggregate to not less than fifteen years. ?

Note that unlike the requirements for citizenship by registration, a naturalization applicant need not show his marriage nor links to a Nigerian grand parent, rather, he is to show his acceptability to a local community.

This section makes period of residency a vital consideration for the conferment of this status. To this extent, it is similar to the position in the United States where by section 1 of the 14th amendment, persons born or naturalized in the United States and subject to the jurisdiction of the country are citizens of the United States and of the State where they reside. The 1979 Ghanaian Constitution in sections 13 and 14 provides is for citizenship by birth and includes children of not more than seven years found in Ghana of unknown parentage, and those not more than sixteen years adopted by a Ghanaian. The provision of section 307 of the Constitution which imposes a ten year ban on elective and appointive positions also apply here.

④ ←

DUAL CITIZENSHIP

Unlike under the 1979 Constitution, the current 1999 Constitution allows a citizen by birth to acquire the citizenship of another country without renouncing his Nigerian citizenship. This also applies to citizens by registration or naturalization who are at liberty to retain their citizenship by birth, alongside their acquired Nigerian citizenship, provided that they renounce their other citizenship 12 months after acquiring the Nigerian citizenship.

Note that the restriction against dual citizenship under Section 28 of the Constitution is limited to persons who are not citizens of Nigeria by birth.

3.3 Termination of Citizenship

Citizenship of Nigeria can be terminated by any of the following means:-

- 3 Ways*
- (a) **Death:-** When a person dies, he ceases to have legal existence and becomes a destitute to rights and liabilities. In other words, death brings a person's citizenship to an end and all his rights, liberty and entitlements are said to die with him. The applicable maxim here is ACTIO PERSONALIS MURITUR CUM PERSONA (a personal right or action dies with the person).
 - (b) **Renunciation:-** A citizen of any category can by declaration in the prescribed manner renounce his citizenship and notify the President who shall register same upon the fulfilment of the following conditions:-
 - i) The declaring citizen must be of full age and capacity, that is, 18 years and above or a married woman.
 - ii) The declaration cannot be made during any war in which Nigeria is physically involved.
 - iii) The declaration must not be such that the President considers in his opinion to be contrary to public policy.
 - (c) **Deprivation by the President:-** This involves the cancellation or revocation of a person's citizenship. Note that this cannot apply to a citizen by birth.

The President can deprive a naturalized citizen of his citizenship if within seven years after his naturalization, he has been sentenced to a term of imprisonment of not less than three years by a court of law. In the same vein, the President can deprive a naturalized or registered citizen of his citizenship if he acquires the citizenship of another country and fails to renounce within twelve months. Similarly, the President can deprive a naturalized or registered citizen of his citizenship if he is satisfied that the citizen has shown himself to be disloyal to the nation or has undermined the interest of the nation or has aided the enemies of the nation.

3.4 The conflict between citizenship and indigeneship in Nigeria

Even though the Nigerian Constitution is silent on indigeneship, there has been a disquieting controversy between citizenship and indigeneship. This conflict stems from the fact that whereas the Constitution extolls the place of citizenship, it still

creates such things like quota system and Federal character principle which in effect makes some citizens appear like second class citizens. Another aspect of this matter is that several citizens residing outside their places of origin have been subjected to severe discrimination as a result of not being indigenes. This has fueled ethnic tension in many parts of Nigeria and has sometimes resulted in actual violence. What this means is that indigeneship enjoys a higher pride of place than citizenship which ought not be so. This scenario has remained a big threat to Nigeria's federalism and has resulted in such vices as ethnicity, nepotism and distrust.

It should be noted that the Federal character principle and quota system are justifiable tools for the unity and integration of Nigeria, especially against the backdrop of our recent history which includes the civil war, the same cannot however be used to justify the unspeakable acts of discrimination which non-indigenes are put through in different parts of Nigeria.

* Conclusion:

A starting point in solving this problem while harmonizing both concepts is to call for an amendment to our Constitution where it will be expressly stated that any Nigerian born in any part of the country or who has resided in an area for ten years should qualify as an indigene of that place. The National Assembly recently proposed such a bill to amend the Constitution but the same is yet to see the light of day. ✓

4.0 CONCLUSION

After over 50 years of independence, we ought as a nation to harmonize and streamline the concepts of citizenship and indigeneship and ensure that they do not deliberately cause Nigerians hardship. Our government should add more value and importance to our citizenship as that is what will guarantee us global respect. Primordial sentiments which pitch some Nigerian against their kith and kin from other parts should be jettisoned for concepts which will give us more unity and cohesion as one indissoluble and indivisible entity known as Nigeria.

5.0 TUTORIAL QUESTIONS

- 1- by birth
- 2- Registration
- 3- Naturalisation
- 4- Dual Citizenship

by birth
Renunciation
(Deprivation by President)

1. What do you understand by citizenship? Discuss the various types of citizenship recognized in Nigeria.
2. In what cases and for what reasons can a Nigerian citizen be deprived of his citizenship.
3. Ben was born in England to a Nigerian mother and an English father on the 1st of June, 1965. Ben has British citizenship. Helen is an American citizen married to Ben. Mr. Patel, an Indian, is the business partner of

Ben and has been residing in Nigeria continuously since 1980. Ben, Helen and Mr. Patel wish to acquire Nigerian citizenship. Advise each of them.

4. "The dichotomy between citizenship and indigeneship in Nigeria is a vexed issue". Discuss
5. In the next constitutional reform in Nigeria, what are your propositions for the resolution of the conflict between citizenship and indigeneship in Nigeria.

6.0 REFERENCES/FURTHER READINGS

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